

Justification Review Document
For Sole Source - FAR Part 13.501*

(*Format follows FAR 6.303-2, but modified to reflect FAR subpart 13.5 procedures)

Program/Equipment: Varian Linear Accelerator System Maintenance Services for Tripler Army Medical Center (TAMC), HI

Authority: 41 United States Code 1901 as implemented in Federal Acquisition Regulation 13.501(a)(1)(ii), sole source (including brand name) under the authority of the simplified procedures for certain commercial products and commercial services.

Amount: The total estimated value of this requirement to include options and FAR 52.217-8, Option to Extend Services is [REDACTED]

Prepared By:

Typed Name: [REDACTED] Phone: [REDACTED]

Title: [REDACTED] Date: [REDACTED]

Email: [REDACTED]

Contracting Officer:

[REDACTED] Phone: [REDACTED]

Date Reviewed: [REDACTED] Email: [REDACTED]

Technical Representative:

Typed Name: [REDACTED] Phone: [REDACTED]

Date Reviewed: [REDACTED] Email: [REDACTED]

Requirements Representative:

Typed Name: [REDACTED] Phone: [REDACTED]

Date Reviewed: [REDACTED] Email: [REDACTED]

Controlled by: USAHCA
Controlled by: MRCO-P
CUI Category: SP// PROCURE
Dissemination Controls: FED ONLY

Varian Linear Accelerator System Maintenance Services at Tripler Army Medical Center, Hawaii

Reviews

I have reviewed this justification and find it adequate to support other than full and open competition.

Legal Counsel

Typed Name: [REDACTED] Phone: [REDACTED]

Signature: [REDACTED] Date: _____

Varian Linear Accelerator System Maintenance Services at Tripler Army Medical Center, Hawaii

Sole Source Justification and Approval
Under FAR 13.501

1. Contracting Activity: Medical Readiness Contracting Office – Pacific (MRCO-P), 146 Clark Road, Building 339, Fort Shafter, Hawaii 96858.

2. Description of Action: This action is for a new Firm-Fixed Price contract. Fiscal Year [REDACTED] Defense Health Program (DHP) funds have been reserved for the base year.

3. Description of Supplies/Services: Maintenance and repair of the government owned Varian Linear Accelerator System, Eclipse Treatment Planning System, and the ARIA Oncology Information system, to include preventive maintenance inspections, replacement of all defective components, and software updates in accordance with (IAW) the Original Equipment Manufacturer (OEM) specifications at Tripler Army Medical Center, Hawaii.

The total estimated value of this requirement is [REDACTED], which includes a 12-month base period, four (4) one-year option periods, and the 6-month extension under FAR 52.217-8.

4. Authority Cited: 41 United States Code 1901 as implemented in Federal Acquisition Regulation 13.501(a)(1)(ii), sole source (including brand name) under the authority of the simplified procedures for certain commercial items.

5. Reason for Authority Cited: The requested support services are of a proprietary nature and the specialized skills required can only be met by Varian Medical Systems (VMS), the OEM. They have proprietary rights for all software, and parts and equipment must be serviced by trained and certified VMS service personnel in accordance with OEM specifications. VMS does not train or certify third party vendors, nor do they sanction non-Varian training centers to provide technical maintenance training for Varian products. Based on the aforementioned, and Tripler Army Medical Center's system configuration, VMS is the only source capable of providing the required services.

6. Efforts to Obtain Competition:

a. Effective Competition. The system, equipment, software, and servicing is proprietary to VMS and not shared with any third party vendors, therefore, effective competition cannot be obtained for this effort. However, the notices required by FAR 5.201 shall be published and any offers received shall be considered.

b. Subcontracting Competition. The products/services manufactured/performed by VMS is proprietary in nature and therefore, they do not subcontract any of their products or services to other companies. After considering this information, the Contracting Officer has determined that subcontracting possibilities do not exist for this requirement in accordance with FAR 19.705-2(c) .

Varian Linear Accelerator System Maintenance Services at Tripler Army Medical Center, Hawaii

7. Actions to Increase Competition: Competition for these services is not available due to the proprietary nature of the equipment configuration already purchased. However, the Technology Assessment and Requirements Analysis (TARA) team has awarded contract [REDACTED] for a MEDCASE acquisition on a competitive basis for a replacement system for the Radiation Oncology Department as the Varian Linear Accelerator System is reaching its end of life in approximately [REDACTED]

[REDACTED]
[REDACTED] Based on previous history of other procurements requiring [REDACTED]

[REDACTED] which impact the timeline.

8. Market Research: The requiring activity and contract specialist conducted market research within the last 12 months by conducting internet searches, contacting knowledgeable people (Government and Industry) regarding this requirement, and reviewing government contracts. The research has shown that this service is commercial in nature and is provided to private, public and government medical institutions. In addition, VMS confirmed that only they, as the OEM, are authorized to perform the proposed contract requirements.

9. Interested Sources: A sources sought notice was posted on SAM.gov on 23 JAN 2025, inviting all responsible sources to submit a capability statement before the closing date of 28 JAN 2025. [REDACTED]

[REDACTED] After review of the provided capability statement and a telephone inquiry with [REDACTED] and the Sole Source Letter from VMS, it was determined the required services cannot be provided from either [REDACTED] and VMS does not train or certify third party vendors. To date, no other sources have written to express an interest.

10. Other Facts:

a. Procurement history.

(1) Previous Contract Number:
Contract #: W81K02-22-P-0087
From: 01 Sep 2022 - 31 Aug 2024

Contract #: W81K02-17-P-0144
From: 7 Feb 2017 – 6 Aug 2020

Contract #: W81K02-11-P-0053
From: 1 Jun 2011 – 31 May 2016

(2) The competitive status of these actions:

The first two Varian Linear Accelerator Maintenance Service Contracts were competed as Full and Open competition. A total of two offers were submitted for the last full and open competition contract, including VMS. The unsuccessful offeror took exception to the software requirements stating it was only available through the OEM (VMS) and based on their exception, was not considered for award. The most recent contract was sole sourced to VMS.

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(3) Authority previously cited, if less than full and open competition was used:

The prior action was sole-sourced under FAR 13.501(a)(1)(ii), sole source (including brand name) under the authority of the simplified procedures for certain commercial items.

(4) If a justification was prepared to support the procurement made before this one, a summary of the contents of paragraph 7 of the justification for that procurement and an explanation of the results.

Paragraph 7 of the previous justification stated "Competition for these services is not available. However, the procurement of a replacement system is in the planning stages and will be a competitive MEDCASE acquisition with an anticipated award date in about [REDACTED]"

The Technology Assessment and Requirements Analysis (TARA) team has awarded contract [REDACTED] for a MEDCASE acquisition on a competitive basis for a replacement system for the Radiation Oncology Department. Also see paragraph 7 herein – Actions to Increase Competition.

(5) If any prior contract for this requirement was accomplished using full and open competition, include a detailed explanation of the changed circumstances causing this action to now limit the sources.

A response to the sources sought issued on 17-P-0144 award appeared to indicate the availability of competition. However, due to the proprietary nature of software upgrades to Varian Linear Accelerator Systems, no other sources were able to provide the services needed. This was evident when the unsuccessful offer was unable to provide the software requirements of the prior solicitation, and as a result, was not considered for possible award.

(6) An explanation of any unusual patterns that may be revealed by the history, e.g., several consecutive, urgent buys.

No unusual patterns were revealed.

(7) If a justification was prepared to support the procurement made before this one, briefly describe the circumstances justifying the procurement and whether there have been any significant changes.

VMS has proprietary rights for all software, and parts and equipment must be serviced by trained and certified VMS service personnel in accordance with OEM specifications. VMS does not train or certify third party vendors. There have been no significant changes in the justification for this procurement compared to the previous one.

b. Other facts: None

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11. Technical Certification:

I certify that the supporting data under my cognizance, which are included in the justification are accurate and complete to the best of my knowledge and belief.

Signature: [REDACTED] Date: [REDACTED] Typed

Name: [REDACTED] Title: [REDACTED]

12. Requirements Certification:

I certify that the supporting data under my cognizance, which are included in the justification are accurate and complete to the best of my knowledge and belief.

Signature: [REDACTED] Date: [REDACTED]

Typed Name: [REDACTED] Title: [REDACTED]

13. Fair and Reasonable Cost Determination:

I hereby determine that the anticipated cost to the Government for this contract action will be fair and reasonable. The basis for this determination will be price analysis in accordance with FAR 15.404-1(b). Certified cost or pricing data is not required per FAR 15.403-1(b)(3) because the service being acquired is considered commercial.

Signature: [REDACTED] Date: [REDACTED]

Typed Name: [REDACTED] Title: [REDACTED]

14. Contracting Officer Certification:

I certify that this justification is accurate and complete to the best of my knowledge and belief.

Signature: [REDACTED] Date: [REDACTED]

Typed Name: [REDACTED] Title: [REDACTED]

Varian Linear Accelerator System Maintenance Services at Tripler Army Medical Center, Hawaii

Approval

Based on the foregoing justification, I hereby approve the procurement of Varian Linear Accelerator System Maintenance Services for the estimated total dollar value of [REDACTED] on an other than full and open competition basis pursuant to the authority of 41 U.S.C. 1901 as implemented by FAR 13.501(a)(1)(ii), sole source (including brand name), subject to availability of funds, and provided that the services and property herein described have otherwise been authorized [REDACTED] isition [REDACTED]

Signature: [REDACTED] Date: [REDACTED]

Typed Name: [REDACTED] Title: [REDACTED]